

23TRCV04082 23TRCV04082

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CM%2C09%2F16%2F2026

Source SHA-256: 197e9b0e483e6c51e274c1f39797ed56a2e25ef532b04d579241f873fb379ed6

Case Number: 23TRCV04082 Hearing Date: September 16, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Wednesday,
September 16, 2026

Department M Calendar No.

PROCEEDINGS

K.J., et al. v. McDonald's Corporation, et al.

23TRCV04082

1. Angelina

Gray, Guardian Ad Litem for Plaintiff K.J., Petition for Approval of Compromise
of Claim of Minor

TENTATIVE RULING

Angelina Gray, Guardian Ad Litem for Plaintiff K.J.,
Petition for Approval of Compromise of Claim of Minor is granted.

Background

Plaintiff filed the Complaint on December 6, 2023. While
at McDonald's in Harbor City, Plaintiff K.J., a minor, was attacked by another
patron of McDonald's. Plaintiff alleges the following causes of action. 1.

Premises Liability 2. Negligence 3. Negligent Hiring, Training, Supervision and Retention 4. Assault and Battery 5. Negligence Against Defendant Ariana Lauifi 6. Intentional Infliction of Emotional Distress.

Petition to Approve Compromise of Pending Action of Minor

A claim by or against a minor may be settled through compromise only with the approval of the court.

A petition for approval must be presented to the court by the minor's guardian. CCP § 372; Probate Code Secs. 2500-2507; 3413-3605.

The court should consider the following factors: the circumstances of the accident, particularly the facts bearing on the payor's liability and the minor's damages; the amount of the proposed settlement; the method of payment; the nature of the injury and the minor's current medical status (the petition should include a recent medical report); and the amount of attorney's fees being requested. Before the hearing, the court should make a preliminary determination of whether the proposed settlement and the method of payment appear reasonable in relation to the potential liability and the nature and extent of injuries. It is especially important to determine whether the minor's condition is permanent, and whether it is stable or likely to worsen. The court should also make a preliminary determination as to whether the costs, expenses, and attorneys' fees appear reasonable.

The Court has reviewed the petition for compromise of pending action. The Court determines that the petition is reasonable as to the settlement amount. The Court finds that the settlement is in the best interest of the minor. The Court finds that the costs, expenses, and attorneys' fees are reasonable. The proposed petition for compromise of the pending action and the proposed disposition of the proceeds of the settlement funds are hereby approved.

Thus, for the foregoing reasons, Petitioner's Petition to Approve Compromise of Pending Action of Minor is granted.

Petitioner is ordered to

give notice of this ruling.